

statement one week before the compliance hearing date.

6. Five percent (5%) of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

No appearance is required at the hearing on July 22, 2026.

8. 9:00 AM CASE NUMBER: C23-02401

CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.

HEARING ON DEMURRER TO: CROSS COMPLAINT

FILED BY: GARDEN COURT APARTMENTS, LLC

TENTATIVE RULING:

Before the Court is a demurrer by cross-defendants Doug Smith, Fuller Properties, LLC, and 21 other entity cross-defendants to the cross-complaint by Sequoia Equities, Inc. and Alder Creek Management, Inc.. For the reasons set forth, the hearing on the demurrer is continued to **1:30 p.m. on August 26, 2026**. The parties shall meet and confer in good faith by telephone, by videoconference, or in person **by August 10, 2026**, and the demurring parties shall file a supplemental declaration attesting to their compliance with this order **by August 14, 2026**.

Inadequate Meet and Confer

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged in person, by videoconference, or by telephone at least five days prior to the deadline for filing the demurrer and to file a declaration attesting to the parties' compliance with the requirement. (Code Civ. Proc. § 430.41(a) and (b).) A meet and confer through the exchange of letters or emails does not satisfy the meet and confer requirements of Code of Civil Procedure section 430.41.

In support of the demurrer, cross-defendants filed a declaration of counsel, Mr. Rupprecht, which attaches an exchange of letters between counsel regarding the grounds for demurrer and the reasons the cross-complainants contend the grounds lack merit, and addressing the parties' obligation to meet and confer in accordance with the Code. (Rupprecht Decl. Exhs. B and C.) In his November 4, 2025 letter, Mr. Rupprecht advised counsel for the cross-complainants that he was going to be starting a court trial on November 10, 2025 and that he would have limited availability "until the end of the month." (Rupprecht Decl. Exh. B.) Counsel for cross-complainants responded by letter dated November 7, 2025 and invited Mr. Rupprecht to provide dates and times when he would be available to conduct the meet and confer, given Mr. Rupprecht's trial. (Rupprecht Decl. Exh. C ["Given your professed limited availability, I would ask you to provide us your dates and times of availability in the coming week."].)

Mr. Rupprecht does not declare that he responded to that letter with dates and times when he was available. Rather, by implication, he acknowledges there was no call, videoconference, or in person meet and confer before he filed the demurrer more than a month later on December 12, 2025, as he states that the parties did not "arrange" a meet and confer phone call before he filed the demurrer, but that he "intends to meet and confer by telephone before Cross-Complainants' opposition would be due." (Rupprecht Decl. ¶ 20.) Mr. Davidson declares in his declaration in opposition to the demurrer that his office never received a response to the November 7, 2025 letter, and that Mr.

Rupprecht did not attempt to meet and confer before the opposition deadline. (Davidson Decl. ¶¶ 4-6.) The reply does not contest these facts but asserts that the November 4, 2025 was the attempt to meet and confer. (Reply pp. 2-3.) A meet and confer letter alone without a phone call, videoconference, or in person meeting does not satisfy the statute.

9. 9:00 AM CASE NUMBER: C23-02578
CASE NAME: DAVID HAMMOND VS. DOES 1 THROUGH 100, INCLUSIVE
HEARING IN RE: MOTION FOR LEAVE TO AMEND COMPLAINT AND CONTINUE TRIAL DATE
FILED BY:
TENTATIVE RULING:

Before the Court is a motion by plaintiffs David Hammon and Hal Seibert for leave to amend their complaint and to continue the trial date. For the reasons set forth, the motion is **granted** on the terms set forth below.

Background

This action involves a dispute as to whether there is a public easement burdening the property located at 2354 Alameda Diablo in Diablo ("Disputed Property"). Plaintiffs contend the easement is approximately 25 feet wide by 100 to 125 feet long (the "Disputed Easement" or "Cut-Through") reflected in the Minor Subdivision Map MS 263-78 ("Map MS 263-78") recorded September 19, 1979 in Book 81, Page 1 of Parcel Maps in the Official Records of Contra Costa County. Map MS 263-78 refers to an offer of dedication of the strip of land for "riding and hiking." (FAC ¶¶ 3, 5, 9-11, 17, 18, and Exh. B.)

When the complaint was filed, U.S. Bank National Association was named as a defendant because U.S. Bank was the title holder of the Disputed Property. U.S. Bank later sold the Disputed Property to defendant DeEtte R. Sipos, who appears in the action individually and as Trustee of The DeEtte R. Sipos Trust Under The EHR QPRT dated 3/26/2003. U.S. Bank was dismissed from the case on June 24, 2025. Sipos was named as a defendant when Plaintiffs filed their operative first amended complaint ("FAC") on September 6, 2024. Sipos filed an answer to the FAC on November 13, 2024, and later an amended answer.

The FAC includes two causes of action for declaratory relief which have been dismissed by Plaintiffs (Req. for Dism. filed 6/2/2025), a cause of action for quiet title to the Disputed Easement, and a cause of action for interference with the Disputed Easement. A preliminary injunction was issued on July 29, 2025 by which an approximate two foot section of fence was ordered removed from the Disputed Property pending trial. Trial is presently set for August 24, 2026.

Legal Standards for Motion for Leave to Amend

The Court has broad discretion to grant leave to amend a pleading at any stage in a case. (See Code Civ. Proc. § 473(a) [court may allow amendment "in furtherance of justice, and on any terms as may be proper"].) (See *also* Code Civ. Proc. § 576 ["Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order."].) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission